

26STCV12202 26STCV12202

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-07-10

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Case Number: 26STCV12202 Hearing Date: July 10, 2026 Dept: 517

The Court is granting Plaintiff's motion for leave to file a Second Amended Complaint. Whether, as Defendant contends, Plaintiff failed to exhaust administrative remedies on the claims in the Second Amended Complaint should be tested through a demurrer or motion for summary judgment. Defendant's position that allowing Plaintiff to amend would be futile due to a failure to exhaust administrative rests on a declaration of a claims investigator for Defendant attesting to purported facts and a request for judicial notice regarding the record of Plaintiff's filing of administrative claims that are inappropriate at this stage. Plaintiff shall serve and file his proposed Second Amended Complaint by July 20, 2026.